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The claim to self-determination: a Sri Lankan Tamil perspective¹

DEVANESAN NESIAH

ABSTRACT *Nationalism and self-determination have many definitions, varying from region to region, and evolving over time. Almost everywhere, the potency of these concepts has greatly increased in the course of the twentieth century. On the one hand, there is a regional or global dispersion of populations and virtually all states are becoming increasingly hetero-ethnic and hetero-national; on the other, the intensity of ethno-nationalism is also increasing and seems to be positively correlated to the degree of dispersion. In this paper, there is an attempt to formulate a definition of nationalism that is relevant to current realities, global and South Asian, and to trace the growth of Sri Lankan Tamil nationalism, virtually non-existent at the time of independence in 1948, in the context of the developments since then. The paper goes on to trace the gradual (and as yet partial) transformation of the Sri Lankan Tamils nationalist objective from internal to external self-determination, beginning in the mid-1970s. Despite the extended bloody civil war, this transformation is yet at an early stage, and it may still be possible to negotiate an end to the civil war on the basis of internal self-determination.²*

Nationalism

What is nationalism? Michael Ignatieff suggests that:

As a political doctrine, nationalism is the belief that the world's people are divided into nations, and that each of these nations has the right of self-determination, either as self-governing units within nation states or as nation states of their own.

As a cultural ideal, nationalism is the claim that while men and women have many identities, it is the nation which provides them with their primary form of belonging.

As a moral ideal, nationalism is an ethic of heroic sacrifice, justifying the use of violence in the defense of one's nation against enemies, internal or external.³

There is an appealing, unambiguous neatness and clarity in this political

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definition that also makes it problematic. Is nationalism so constrained by national or sub-national boundaries? Does nationalism necessarily aspire to the achievement of national independence or territorial self-government? Are there no people (e.g. Malaysian Chinese) that share a nationalism but are not rooted in (or even aspire to) an independent state or self-governing unit of their own? Even in cases where there was such a 'homeland' from which they became (voluntarily or involuntarily) scattered, does that diaspora (e.g. Americans of Irish origin or Canadians of Sri Lankan origin) necessarily aspire to return to that homeland? We need a more complex definition of nationalism to capture the realities of today—a definition that would cover, on the one hand, the nationalism of the Malaysian Chinese (mostly resident in their own country) and, on the other, American Irish and Canadian Sri Lankan Tamil diaspora (most of whom have no intention of ever returning to their country of origin). It must be noted that both these categories of nationalism are at least as much political as cultural; in fact, the cultural component is often used for political ends.

How could we define nationalism without Ignatieff's overly restrictive 'right of self-determination, either as self-governing units within nation states or as nation states of their own? What is the point of departure from group consciousness to nationalism? Michael Roberts⁴ outlines two alternative European models of nationalism. The traditional West European model, defined largely in terms of citizenship, is of little relevance to multi-ethnic countries elsewhere; even within West Europe, this model is being progressively dismantled. The model based on culture, language and ethnicity that has prevailed in Central and East Europe is of greater relevance to South Asia, but the distinctive pluralism of the countries of this region, Sri Lanka included, is even more complex than that of Central and East Europe.

Locally, regionally and globally, nationalism has contributed to much destructive conflict of one kind or another and, in consequence, acquired a negative image. But whether we like it or not, it appears to be an increasingly significant feature of virtually all societies. As Hans Kohn has observed:

Nationalism ... is an act of consciousness ... the mental life of man is as much dominated by an ego consciousness as it is by a group consciousness. Both are complete states of mind at which we arrive through experiences of differentiation and opposition, of the ego and the surrounding world, of the we group and those outside the group.⁵

A fundamental pre-requisite of nationalism is a sense of community. That nations are creations with changing contours and characteristics,⁶ and cannot be defined mechanically in terms of race, language, religion, territory, citizenship, history, or even all of these, is not a recent proposition. For example, Ramsay Muir suggested long ago that: 'A nation is a nation because its members persistently and unanimously believed it to be so ... Nationality, since it is not solely or even mainly based upon racial homogeneity, can be nursed into existence, even where most of the elements of unity are to begin with lacking'.⁷

What is meant here by nationalism is not an abstraction defined in terms of race, language, religion, territory, citizenship, or history (although consciousness

of each of these would be relevant), nor an alliance arising from the need to unite to promote common concerns (although this factor could also be pertinent). It is a unity arising from a sense of belonging and attachment, such as referred to by Clifford Geertz:

The congruities of blood, speech and custom and so on are seen to have an infallible and, at times, overpowering coerciveness in and of themselves. One is bound to one's kinsmen, one's neighbour, one's fellow-believer, *ipso facto*, as the result not merely of personal affection, practical necessity, common interest or incurred obligations, but at least in great part by virtue of some unaccountable absolute import attributed to the very tie itself. The general strength of such primordial bonds, and the types of them that are important, differ from person to person, from society to society, and from time to time. But, for virtually every person, in every society, and almost at all times, some attachments seem to flow from a sense of natural, some would say spiritual, affinity than from social interaction.⁸

But nationalism extends beyond group consciousness into the political domain. The definition given is therefore incomplete without an explicitly political dimension, e.g. Paul Brass' definition of nationalism as 'the process by which ethnic groups and communities are mobilised for action to attain political ends'⁹, or Ernest Gellner's that 'Nationalism is primarily a political principle, which holds that the political and the national unit should be congruent'.¹⁰ This political unit need not be an independent uni-national state. We also note David Potter's observation that:

... when a historian attributes nationality to any group he establishes a presumption in favour of any acts involving an exercise of autonomy that the group may commit; when he denies nationality, he establishes a presumption against any exercise of autonomy or self-determination.¹¹

Based on Geertz, read with Brass, Gellner and Potter, we may identify two of the essential attributes of nationalism; namely, ascriptive membership of a community that demands overpowering loyalty transcending common interests or incurred obligations and, second, the organization of that community for political ends. For an individual, there could be multiple community loyalties in parallel (the communities possible overlapping each other) or in series (one enclosing another).

Within Sri Lanka, an example of the former is Tamil linguistic with Islamic religious and, of the latter, Sinhala together with Buddhist. But political organization is a pre-requisite for community loyalties to transcend into nationalism. Thus, we may speak of Sri Lankan, Sinhala and Tamil nationalism,¹² but not Buddhist, Hindu, Christian or Muslim nationalism. Unlike the Muslims and Hill Country Tamils, the Sri Lankan Tamils (including the diaspora) have community-based political objectives, invariably centered on an autonomous Tamil region, even though many of them may not be in that region or even aspire to move into it. As in the case of communal loyalties, there could be multiple nationalism; for example, Sinhala/Tamil nationalism could complement Sri Lankan nationalism. Moreover, between Sinhala and Tamil nationalisms,

there could be tension on certain issues, but these need not escalate into major conflict.

Shifting the focus overseas, Irish Americans could subscribe to both US and Irish nationalism (relating to both present and past homelands), even if they have never visited nor intend to migrate to Ireland. Likewise, Indian Bengalis and Indian Gujaratis, who have regional homelands within India, could subscribe to both Indian and Bengali/Gujarati nationalisms. In contrast, Malaysian Chinese have no homeland apart from Malaysia, but are politically organized on the basis of ethnicity, enjoy a measure of self-determination through constituting the essential Chinese component of the tri-ethnic coalitions that have governed Malaysia since independence, and therefore qualify, under our definition, for both Malaysian and Malaysian Chinese nationalisms.

It needs to be noted that, first, 'organization of the community for political ends' does not require that the majority of that community become politically active. Only a small minority may be so active, and the majority may acquiesce in that organization or be indifferent; some may even be engaged in counter-organization. Second, the political end envisaged needs to include a measure of self-determination/political empowerment, but this may range from an autonomous region (as in the case of Scottish nationalism and Tamil nationalism) to other kinds of political accommodation (as in the case of Malaysian Chinese) and, in exceptional cases such as Palestine, a sovereign state. Third, in the case of multiple nationalisms, the loyalties may be asymmetric; the dual loyalty may be complementary for some but contradictory for others. Currently, for many Sri Lankan Tamils, it is the contradictions that dominate; but this was not always so (there was no Tamil nationalism prior to the mid-twentieth century) and need not always be so (Sri Lankan, Sinhala and Tamil nationalisms may, in time, learn to co-exist).

While our definition of nationalism requires a political component, we need to distinguish between nation and state. Just as there could be several nationalisms contained within a state, there could be nationalisms that straddle several states; some could be virtually global, as pointed out by Hugh Seton-Watson:

States can exist without a nation, or with several nations, among their subjects; and a nation can be coterminous with the population of one state, or be included together with other nations within one state, or be divided between several states. There were states long before nations, and there are some nations that are much older than most states which exist today. The belief that every state is a nation or that all sovereign states are national states, has done much to obfuscate human understanding of political realities. A state is a legal and political organization, with the power to require obedience and loyalty from its citizens. A nation is a community of people, whose members are bound together by a sense of solidarity, a common culture, a national consciousness.¹³

We go on to define nationalism as 'the ascriptive membership of a politically organised community bound by history, ethnicity and association with an identified territory, and which demands loyalty and sacrifice'.

The emergence of Sri Lankan Tamil ethnic consciousness

Sri Lankan Tamils have always considered themselves to be among the earliest inhabitants of this island. This is backed by archeological evidence such as that referred to by Indrapala.¹⁴ Moreover, as Paul Pieris has noted:

It has also been argued that a country which was only 30 miles from India, and which would have been seen by Indian fishermen every morning as they sailed out to catch their fish, would have been occupied as soon as they learnt to sail. Long before the arrival of Prince Vijaya, there were in Ceylon five recognized Isvarams of Siva which claimed and received the adoration of all India. These were Tiruketeeswaram ... Munneswaram ... Tondeswaram ... Tirukoneswaram ... and Nakuleswaram ...¹⁵

The dispute as to who came first, the Sinhalese or Tamils, agitates many but, in fact, this is a non-issue; ethnic identities have changed over the centuries. Both communities have lived together for over two millennia in this island, which has been referred to in the Sangam period (first and second centuries A.D.) Tamil literature as Eelam. There had been significant Tamil (Hindu and Buddhist) and Sinhalese (Buddhist) presence and interaction in this island from prehistoric times. In fact, as Pathmanathan has pointed out, 'from the earliest times and until the 14th century a substantial proportion of the Tamils living in the island were Buddhists.'¹⁶

Jaffna, widely identified as a centre of Sri Lankan Tamil consciousness all through the twentieth century, also produced the earliest and most militant all-island oriented nationalist movement. The Jaffna Youth Congress (JYC), which peaked in the early 1930s, campaigned against the caste system, opposed federalism (for unstated reasons, perhaps this option was not seriously explored), demanded quick independence for a united Sri Lanka, and rejected the Donoughmore reforms of 1931 as too little too late.¹⁷ Their allies across the Palk Strait were the Indian National Congress led by Mahatma Gandhi and Jawaharlal Nehru, and not the Dravidian movement of Tamil Nadu; their closest partners within Sri Lanka were the radical Sinhalese nationalist and Marxist leaders of the South rather than the anglicised 'moderate' leaders of the Ceylon National Congress (CNC) and the United National Party (UNP). The JYC was totally alienated both from Dravidian sectarianism in India and from local Tamil sectarianism sponsored by those who, in the mid-1930s, formed the Tamil Congress. But whereas the JYC was dominant in Jaffna in the environment of the late-1920s and early-1930s, none of its leaders could avoid being marginalized by the Tamil Congress that dominated the North from the mid-1930s to the early-1950s.

Long before independence, the JYC led the campaign for the use of the national languages in education and in governance. The *Mother Tongue in Education* was authored by a JYC activist.¹⁸ The JYC succeeded in getting virtually all the leading schools in Jaffna to teach Sinhala as a compulsory subject at the secondary level. As J. E. Jayasuriya has noted, 'At a time when the Sinhalese were prepared to do without Sinhala, the battle for Sinhala and

Tamil was fought by Tamil leaders'.¹⁹ Ironically, the teaching of Sinhala in schools in Jaffna was abruptly terminated in 1956 as a reaction to the introduction of Sinhala as the only official language.

The Tamil Congress, which displaced and took over the political leadership of the Sri Lankan Tamils from the JYC, did not pick up and carry forward the national languages policy of the latter. Like the leadership of the CNC/UNP, the Tamil Congress was comfortable with the continuation of English as the medium of instruction in major schools and as the language of governance. When radical Sinhala leadership emerged to challenge the UNP, it was on a 'Sinhala-only' platform. Perhaps if the Tamil leadership had retained its former national languages orientation, the challenge could have been thrown by a radical multi-ethnic coalition on a Sinhala–Tamil bilingual platform. The social, cultural and political transformation that began in the mid-1950s might then have been unifying and not divisive, and could have benefited both language groups and not just the Sinhalese speakers at the cost of marginalizing and alienating the Tamil speakers.

Up to the time of independence, the Tamil leadership was virtually unanimously and uncompromisingly in favour of a unitary Sri Lankan state. Even the Tamil Congress, which was promoting Tamil consciousness, did not favour federalism. Perhaps they were not far sighted and only feared that federalism would limit their professional opportunities. The concept of federalism was introduced to the community only after independence, and was resoundingly rejected, even in Jaffna, in the 1952 general elections. It was only with the Sinhala-only movement of 1956 that the Sri Lankan Tamil population opted for federalism. In due course, the political factors that united the Sri Lankan Tamil population gradually gained ascendancy (in the political field) over the caste and other prejudices that had kept the population divided. Eventually, this nationalism acquired a separatist component, but this component remained peripheral up to the mid-1970s. Every candidate-advocating secession was demoralisingly defeated at every election to every parliamentary seat up to the mid-1970s.

In an early phase (1950s and 1960s), there was an attempt to develop an overarching Tamil-speaking people nationalism incorporating all sections of Sri Lankan Tamils, Hill Country Tamils and Muslims. This reflected, in part, the vision of S.J.V. Chelvanayakam and some other leaders, especially within the Federal Party (FP) and, in part, an attempt to gain electoral advantage within the North East. In keeping with this ideology, Trincomalee was conceived as the capital of the North East region, and a few Eastern Province Tamil and Muslim leaders were included to join the Colombo/Jaffna Tamils already entrenched in the FP leadership. Furthermore, the policies were broadened with a view to take in the concerns of all sections of the Tamil-speaking people including the Hill Country Tamil; but there was much historic resentment and suspicion of Jaffna Tamil domination, and these were not easily erased.

While the FP (later the Tamil United Liberation Front or TULF) made some progress towards gradually drawing together different sections of the Sri Lankan Tamil community, it was less successful in erasing the boundaries that divided

the Tamil-speaking people into the Sri Lankan Tamil, Hill Country Tamil and Muslim ethnic groups. At the electoral level, whereas the candidates put forward by the FP won some of the seats in the Eastern Province with backing from both Tamil and Muslim voters, the Muslims so elected found themselves doubly disadvantaged in a Jaffna Tamil-dominated opposition party that was itself marginalized at the centre; this situation brought them the benefits neither of any access to central patronage (that cooperation with the ruling party would have given) nor of any effective political leadership at the regional level. In fact, this thinking was shared to some extent by the local political leadership of the Tamils of the Eastern and Vanni districts, some of whom, together with the Muslim members of parliament of the East, found it prudent to cross over, soon after securing election on the FP ticket, into the ruling party.

While the political initiative based on forging a Tamil-speaking people nationalism did not succeed, it may have helped to stimulate political consciousness throughout the North East by highlighting the political concerns of the Tamil and Muslim populations of the region. A logical development was the emergence of a Muslim political party (the Sri Lanka Muslim Congress) with a strong base in the Eastern province. Perhaps a strategy based on forging a coalition of one or two of the existing Tamil parties and a Muslim party with a strong base in the East would have been more effective in serving both Tamil and Muslim interests than the failed Tamil-speaking people initiative then attempted. From the Muslim perspective, the emergence of a political party with an Eastern base poses a dilemma: how can the hitherto neglected concerns of the Muslims of the North East (some of which are similar to those of the Tamils of that region) be effectively articulated without adverse impact on the Muslims of the other regions? Another dilemma relates to the reconciliation of the aspirations of the Tamil and Muslim populations of the North East. These dilemmas need to be resolved.

From ethnic consciousness to nationalism

K. M. de Silva's definition of separatism 'as a concerted attempt at the creation of a new sovereign political entity out of a larger one'²⁰ is clearly incompatible with his position that Tamil separatism rose in the period 1948–1955. The Sri Lankan Tamil sectarianism/communalism that surfaced with the Tamil Congress in the 1930s was stridently narrow and ideologically primitive (*vide* agendas such as the 50–50 proposal), but not separatist. The FP, too, was Tamil nationalist but not separatist. Despite the progressive defection of the non-Marxist parties, followed by the Marxist parties, into Sinhala only, Tamil separatism received no electoral backing until the mid-1970s. As late as 1970, when an ex-FP member of parliament (Navaratnam) voiced his advocacy of separatism (i.e. secession), the FP challenged him by nominating K.P. Ratnam to contest him. Navaratnam campaigned vigorously on a secessionist platform, and Ratnam on a federalist platform; Ratnam won handsomely. The statement of S.J.V.

Chelvanayakam on winning the Kankesanthurai bye election in February 1975, marks a fateful turning point:

We have for the last 25 years made every effort to secure our political rights on the basis of equality with the Sinhalese in a united Ceylon ... It is a regrettable fact that successive Sinhalese governments have used the power that flows from independence to deny us our fundamental rights and reduce us to the position of a subject people ... I wish to announce to my people and to the country that I consider the verdict at this election as a mandate that the Tamil Eelam nation should exercise the sovereignty already vested in the Tamil people and become free.²¹

That statement and the Vaddukoddai Resolution of 1976 in favour of separation must be seen in the context of many painful and humiliating reverses, including the adoption of the scheme of 'standardization' of University admissions in 1971 and the 1972 constitution. In the context in which it was adopted, many Sinhalese leaders may have seen the 'standardization' of university admissions as a politically compelling measure. They failed to understand (or were indifferent to) the traumatic impact it would have on the Sri Lankan Tamil community. In turn, the Sri Lanka Tamil leaders failed to understand (or were indifferent to) the political pressures on the Sinhalese leaders on account of the growing ethnic imbalance in university admissions. Negotiations between the political leaders of the different ethnic groups on this issue may have led to an acceptable solution—but such dialogue has not been part of Sri Lanka's political tradition. Similarly, the drafting of the 1972 constitution was widely seen by the minorities, especially the Sri Lankan Tamils, as an exercise undertaken by the Sinhalese leaders with little heed to the concerns of the minorities.

The alienation of the Tamil leaders (and, in consequence, the Tamil people) arising from the lack of any attempt to accommodate or even consider their views in the framing of the constitution was a major contributory factor to the emergence of the Vaddukoddai Resolution of 1976. Even at that stage, it appears that many who voted for that resolution or refrained from publicly opposing it saw it as a token of protest against oppression or a strategic bargaining position, rather than an expression of their aspiration. But they miscalculated the impact of that resolution. On the one hand, the youth at that assembly took it seriously and embarked on a separatist struggle that, within a decade, developed into a civil war. On the other, it provided valuable ammunition to those of the Sinhalese leaders who organised the anti-Tamil violence of 1977, 1979 and 1981, and the island-wide pogrom of 1983.

The pogrom of 1983, in which sections of the ruling party were clearly involved, was followed by the effective disenfranchisement of the Tamil people, with the expulsion of their leaders from parliament for failing to make a humiliating declaration renouncing secession in the immediate wake of the pogrom. This led to an extended break in the democratic process among the Sri Lankan Tamils. Inevitably, militant groups filled the vacuum created by the absence of Tamil Members of Parliament. This situation remains unchanged in that the Sri Lankan Tamils of the North and parts of the East continue to be

effectively disenfranchized, i.e. most of them have had no say in electing any sitting member of parliament. Moreover, virtually all Tamils, whether displaced or not, are living in the shadow of a continuing war that effectively curtails their political and other rights.

A critical factor in the development of Tamil nationalism is the displacement, at some time or the other, of over one million of the Tamil population, many of whom have been displaced several times. More than a one-half of this number remain displaced. As long as the war continues, so will displacement. Hundreds of thousands of Tamils are scattered overseas in many countries and include a large number who are engaged in political activities related to the ethnic conflict. These include those supportive of and those opposed to the Liberation Tigers of Tamil Eelam (LTTE); the former are more effective and a major resource for the LTTE in fund raising, lobbying, demonstrations, etc. Another large segment is internally displaced within the North East, mostly living in conditions of acute deprivation, and often subject to harassment of one kind or another by the armed forces/LTTE/other armed groups. This category is a major source of recruitment to the LTTE and, on a smaller scale, to other militant cadres. A third major segment is displaced within the island but outside the North East. This group is often subject to harassment by the police/armed forces and to discrimination of various kinds in respect of housing, employment, freedom of movement, etc.

Sri Lankan Tamils have never had an effective political voice at the centre nor, except for a brief period, even at the provincial level. Outside the North East, they are conspicuously marginalized at all political levels; the few who have contested political elections, even in areas of high Sri Lankan Tamil concentration, such as Colombo, were seldom elected. They have hitherto reacted (mostly negatively) to political developments (mostly adverse) led by the two major parties dominated by the Sinhalese. Even when on rare occasions their concerns appeared to be heeded, the agreements entered into were either repudiated by the governments that negotiated them or were not seriously implemented. In consequence, there is very little motivation or attempt to enter/re-enter the political process. Even at present, whereas the leadership of the Muslims and the Hill Country Tamils are represented in the Cabinet and have some influence in advancing the interests they represent, the mainstream Sri Lankan Tamil leadership remains marginalized. It appears that Sri Lankan Tamils have developed neither the will nor the capacity to effectively participate in government at the centre or anywhere outside the North East; nor has there been any credible attempt to bring them in.

Perhaps the roots of this isolation can be traced back to the Tamil Congress leader, G.G. Ponnambalam, being given a cabinet portfolio in the UNP government, soon after independence, in exchange for Tamil Congress members of Parliament (MPs) voting for the denial of citizenship (leading to disenfranchisement) to the bulk of the Hill Country Tamil population. He was denounced as a traitor by the breakaway faction (which constituted the Federal Party) led by S.J.V. Chelvanayagam. Since then, every Sri Lankan Tamil MP accepting a cabinet portfolio has been labeled as a traitor. When the Dudley Senanayake

government (1965–1970) offered four portfolios to Tamil MPs (three for the FP, one for the Tamil Congress), the FP declined and, instead, nominated M Tiruchelvam, a Senator (not MP), for the Local Government portfolio for the exclusive purpose of introducing the District Councils Bill. In fact, as a Minister, Tiruchelvam refused every official invitation to travel abroad and also used his private car for all but purely official travel, i.e. he declined to accept the perquisites of office. In the event, in due course, the District Councils Bill was abandoned, Tiruchelvam resigned his portfolio and the Sri Lankan Tamils reaped no tangible benefits from his tenure of office.

Clearly, this situation of isolation is incompatible with any reconciliation and can only serve to promote further conflict. The role of Sri Lankan Tamils in national politics needs to be worked out, and this may require fresh thinking on the part of those of all communities. Within the Sri Lankan Tamil community, some developments have taken place in respect of their self-perception. The ‘nationalism’ of the Sri Lankan Tamils now embraces all Sri Lankan Tamils and is not fragmented as much as it was at the time of independence. In the political field, just as the Low Country and Kandyan Sinhalese ethnic identities have virtually merged, so too have the fragments of the Sri Lankan Tamil ethnic group; in the social field, barriers remain but some progress is evident. The political focus of Sri Lankan Tamil nationalism has also gradually moved away from public service employment and university admissions (of very high priority to the Jaffna/Colombo Tamil urban middle class) to land and devolution (of great concern to the predominantly rural Tamils of the Vanni and the East).

As Godfrey Gunatilleke has pointed out in an unpublished note, while Sinhala nationalism is born out of the past, Tamil nationalism is born out of the present. But this does not imply that, because it has emerged recently, Sri Lankan Tamil nationalism may be ephemeral. History cannot be reversed, the sequence of traumatic events since independence cannot be undone, and the nationalism that has emerged from such a cauldron cannot be put back. This nationalism has been defined in terms of the ‘Thimpu Principles’ jointly put forward by the Tamil groups at the Thimpu negotiations in July and August 1995.²² This position may superficially appear to be separatist, but the concepts of homeland and self-determination are compatible with a united (although not unitary) Sri Lanka. The different proponents of the Thimpu Principles have different interpretations of them, but its value is that it is a collective Sri Lankan Tamil formulation that is not based on secession, and could therefore serve as an entry point into the negotiation process.

The emergence of Tamil youth militancy from the FP/TULF youth wing three decades ago, and its growth since then, have radically altered the political landscape. While the initial impetus appears to have come from sections of the FP/TULF, and Tamil public support for this group was evident in the early years, this militancy has gained form and momentum in a climate of grossly discriminatory policies (e.g. in respect of language, employment and university admissions), and harsh repression (by the police and armed forces). The pogroms of 1977, 1979, 1981, and 1983, and the consequent exit from parliament of the

TULF MPs, led to the youth militants taking over the leadership and, in due course, the LTTE emerged as virtually the sole leader.

The use/misuse of armed Tamil groups other than the LTTE as the extensions of the armed forces has deprived them of whatever legitimacy they may have previously enjoyed as representatives of the Tamil population. Combined with the impotence of the TULF within and outside parliament, the policies of successive governments and political realities, especially the war, have combined to nudge Tamil nationalism in the direction of secession. But there is much uncertainty and ambivalence among Sri Lankan Tamils, and the situation on the ground is not conducive to the free expression of political opinion; many have been assassinated for exercising this freedom.

The wars that have gone on with brief interruptions since the mid-1980s have only served to reinforce the lead role of the LTTE, to marginalize all the other militant groups and to gradually erode the effectiveness of the TULF. It has been claimed by successive governments that the war is intended to weaken the LTTE and to facilitate a peaceful political solution; in fact (and, perhaps, inevitably), it has enhanced the position of the LTTE and made any political settlement much more difficult. Moreover, although there was a significant Marxist component within some of the Tamil militant groups in the early years, the climate of ethnic polarization that affected even the mainstream Marxist parties at that time prevented those parties from forging any links or influencing the LTTE in its formative years. The total isolation of the LTTE, and the absence from public life of any 'political wing' of that organisation with which others could interact, hinders any movement towards a settlement, and is not, in this respect, in the national interest.

The claim to self-determination

The territorial focus of Sri Lankan Tamil nationalism has always been within Sri Lanka. An enduring Sri Lankan Tamil perception is that, while they had and may continue to have close linguistic religious and other cultural ties with Tamils in Tamil Nadu and elsewhere, their homeland has been and will be this island. This feeling is shared even by those in the Tamil diaspora who have left Sri Lanka and are permanently resident in other countries including India. A recent development is that there may be some ambivalence as to whether this homeland covers the whole or a part of this island, but at no time has Tamil Nadu or India been regarded as the homeland of Sri Lankan Tamils. Some political leaders in Tamil Nadu came to share Sri Lankan Tamil nationalist sentiments in the past three decades of the twentieth century, but these were never critical election issues; the voters of Tamil Nadu have always had more urgent concerns. This issue was more significant in the relationship between the leadership of Tamil Nadu and the Indian Union Government.

As in the case of several other linguistic groups, there is a global diaspora sharing a consciousness of Tamil identity. But these ties are weak and basic conflicts of interest exist that cannot be wished away:

It would be a mistake to presume that the interests of all Tamils in Sri Lanka and elsewhere necessarily coincide. The Tamils in Jaffna show a degree of disdain and even contempt for the interests of the 'Plantation Tamils' in southern Sri Lanka. The 'Plantation Tamils' as they are known, have their own political leaders, who realize their future lies in Sri Lanka developing into a healthy, pluralistic and tolerant society. They fear the disruptive and secessionist role of the LTTE and its frequent resort to violence, as they would be among the first targets of a Sinhala backlash.

The interests of the southern Tamils would be best served with remunerative prices and open markets for their tea and other plantation crops, yet Tamil Nadu was one of the states that raised objections and demanded quota restrictions on the import of Sri Lankan tea, when the Indo-Sri Lanka free trade agreement was being negotiated. Any Chief Minister of Tamil Nadu naturally has to safe-guard the interests of the tea estate workers in the Nilgris rather than their Tamil compatriots in southern Sri Lanka.²³

Although the proponents of the Tamil nationalism that is the subject of this paper are not confined to Sri Lanka (many of its most militant advocates are scattered overseas), it has no other territorial focus. In the context of developments over the past five decades, the right to self-determination has emerged as an essential component of this nationalism. A widespread misconception shared alike by many supporters and many opponents of secession is the identification of the right to self-determination with the right to unilateral secession. On the contrary, as Frederic Kirgis Jr. points out, the many faces of self-determination include:

The right of limited autonomy, short of secession, for groups defined territorially or by common ethnic, religious and linguistic bonds—as in autonomous areas within confederations.

Rights of minority groups within a larger political entity, as recognized in Article 27 of the Covenant on Civil and Political Rights and in the General Assembly's 1992 Declaration on the Rights of Persons Belonging to National or Ethnic, Religious and Linguistic Minorities.²⁴

In international law, the right to secede is only one of the options, and even that option cannot be exercised unilaterally. In fact, this question was posed by the Governor in Council of Canada to the Canadian Supreme Court as follows: '[Is] there a right to self-determination under international law that would give the National Assembly, legislature or government of Quebec the right to effect the secession of Quebec from Canada unilaterally?'²⁵ In response, the Supreme Court of Canada set out its opinion very clearly:

The recognised sources of international law established that the right to self-determination of a people is normally fulfilled through internal self-determination—a people's pursuit of its political, economic, social and cultural development within the framework of an existing state. A right to external self-determination (which in this case potentially takes the form of the assertion of a right to unilateral secession) arises in only the most extreme of cases and, even then, under carefully defined circumstances ...

The international law principle of self-determination has evolved within a framework of respect for the territorial integrity of existing states ...

... There is no necessary incompatibility between the maintenance of the territorial integrity of existing states, including Canada, and the right of a 'people' to achieve a full measure of self-determination. A state whose government represents the whole of the people or peoples resident within its territory, on a basis of equality and without discrimination, and respects the principles of self-determination in its internal arrangements, is entitled to the protection under international law of its territorial integrity.

A number of commentators have further asserted that the right of self-determination may ground a right to unilateral secession ... when a people is blocked from the meaningful exercise of its right to self-determination internally ... The Vienna Declaration ... adds credence to the assertion that such a complete blockage may potentially give rights to a right of secession.²⁶

We note that the Canadian Supreme Court and much of the literature²⁷ on the subject draw a clear distinction between internal and external self-determination. Effective provision for internal self-determination (e.g. federalism combined with non-discrimination), far from paving the way for unilateral secession, delegitimizes any recourse to it. On the other hand, the denial of due internal self-determination could legitimize a right of secession.

The future

What peaceful options remain, and how can they be availed of? How can the objectives of Sri Lankan Tamil nationalism be reconciled with the concerns of other ethnic groups? Perhaps Sri Lankan Tamil nationalism could eventually widen to include the Hill Country Tamils and, possibly, the Muslims, but that has not yet happened and such developments cannot be forced. The Muslims and the Hill Country Tamils have a right to define their ethnic identity.

How will the objective of an autonomous Tamil majority region covering the North East relate to the interests of the Sinhalese, Muslims and Hill Country Tamils, and Sri Lankan Tamils resident outside the North East? If the Sri Lankan Tamils of the North East could demand a Tamil-majority self-governing unit in that region, the Muslims of that region could also demand either institutional provision for a significant voice in that administration or a Muslim majority self-governing unit. Either the regional (North East) administrative structure should be negotiated to the satisfaction of the different ethnic groups of that region, or there must be provision for a parallel autonomous Muslim majority (South East?) region, the contours of which need to be negotiated and a consensus arrived at. In that event, Ampara electoral division, which is overwhelmingly Sinhalese, may need to be amalgamated with the Uva region.

Despite the increasing intrusion of ethnicity in political mobilization, an autonomous East, with its unique history, culture and tri-ethnic mix, could have been a model of co-existence for Sri Lanka. Each of the ethnic groups would have been motivated to seek coalitions with one or both of the other ethnic

groups so as to form the regional government, and equally motivated to avoid falling out with either of the other groups so as not to damage future prospects. In turn, national political parties, mindful of both their current and future interests in the East, would have been motivated to avoid resorting to racist politics anywhere in the island. Sadly, much brutal violence and ethnic cleansing appear to have closed the option of an autonomous East and increased the likelihood of its break-up.

In the case of Hill Country Tamils, they have legitimate claims to equal language rights in areas in which they live in large numbers. Perhaps, with the prospective gradual fusion of the Sri Lankan Tamil and Hill Country Tamil communities (a process that may have already begun in the case of Hill Country Tamils settled in the North East or in Colombo), they may eventually come to see the North East as the region to which they can go if they wish to live in a Tamil-majority area, and the regional government of which could be expected to promote their language, religion, culture and other concerns. The Sri Lankan Tamils resident outside the North East already view that region and the regional government sought to be established in these terms.

It is necessary to dispel the notion that the emergence of an autonomous Tamil-majority North East region is of interest only to the Tamils who reside there. The Indian parallel is instructive. First, the linguistic reorganisation of the states undertaken four decades ago was not the exclusive concern of those living in the areas that came to be transferred in the reorganization. It was an all-India issue and concerned everyone resident everywhere. Second, every village was not transferred to the administration of the state in which the language of that village was the official language. The principle of territorial contiguity was observed and thousands of villages continue to be administered by states in which the official language of that state is different from that of the village. Third, there were no large-scale movements of population resulting from the reorganization. The overwhelming majority of the population remained where they were and saw no reason to move to their linguistic 'homelands'.

Overall, millions of Indians of each of the major linguistic groups are scattered and settled in many states. As in the case of expatriate populations almost everywhere, their emotional and political adjustment to the environment and policies of the state in which they reside is helped, not hindered, by the resolution of the problems relating to their 'homeland', even though they may never be part of that 'homeland'. In fact, the growing internal diaspora is a positive feature of Indian federalism, highlighting both the plurality and integrity of India.

Fundamental to the federal concept is the fact that none of the federating units is exclusive, i.e. all citizens of the country have free access to every federating unit. While there could be legitimate ground to oppose state-aided settlement schemes designed to alter the ethnic balance of any region, a federation of ethnically exclusive regions cannot be viable. This reality needs to be accepted by Sri Lankan Tamils as well as those of all other communities in respect of all the regions of Sri Lanka. There has been much ethnic cleansing of Sinhalese,

Tamils and Muslims; effective counter-action is necessary. The entire island belongs equally to all her citizens, irrespective of whether the administration is unitary or federal.

The establishment of a Tamil-majority autonomous region would raise, among the Sinhalese, fears of secession and also fears for the security of the Sinhalese settled in that region. As already pointed out, the federal concept and the manner in which it has worked out in other countries in the region suggest that federalism would minimize (although perhaps not eliminate) ethnic conflict. In the case of secession too, the experience elsewhere suggests that this demand is more potent where there is repression and over-centralization (as in the case of Pakistan in relation to Bangladesh) than in cases where there is a ready acceptance of devolution (as in the case of Switzerland and the UK). It could be argued that both Canada and India would have fragmented long ago if they did not have federal constitutions; and that the secession of Bangladesh, Eritrea and Bosnia may not have occurred if they enjoyed equality and internal self-determination. However, historic parallels may not be enough to dispel Sinhalese fears of secession and political links with Tamil Nadu, and these need to be addressed and necessary safeguards worked out. On the other hand, minority fears of unfettered powers of the centre to dissolve regional governments and impose direct central rule also need to be addressed.

There has been much focus on constitutional changes but very little on other relevant issues. Very little attention has been paid to defining the post-settlement role of ex-militants (including the security of different categories of dissidents) and internal security issues. These could be very difficult hurdles to clear, and without clear agreement on these matters there can be no settlement. These questions demand much consultation and thinking among all the communities.

The conflict in Sri Lanka has generated a large number of internally displaced Sri Lankan Tamils and a large diaspora spread over many countries. Among the internally displaced, while many may wish to go back to their original homes, many others may not. Many in the diaspora may wish to return to Sri Lanka in the event of settlement, but many others may not. Those who fear forcible repatriation in the event of a settlement may be motivated to oppose any. Many among these have been politically active in diverse ways—in drawing global attention to the crisis and the suffering of the Sri Lankan Tamil population, in materially helping those displaced, in lobbying with different government, non-government and international agencies, etc. Some have been promoting the civil war in one way or the other. The relationship between several Sri Lankan missions overseas and the Sri Lankan Tamil diaspora is minimal and frequently unfriendly; it is clearly in the national interest to correct this situation.

Thus, different sections of the displaced have different objectives and divergent interests, and, collectively, in one way or another, they make considerable political impact. Sri Lankan Tamil nationalism, which incorporates such a widely dispersed population with multiple, mutually contradictory interests, must come to terms with this reality. While the scattering of the population cannot be totally reversed, and their reconcentration in the North East or even within Sri

Lanka to recapture the ante-bellum population distribution pattern is not feasible, it is essential to take account of and at least partially resolve the contradictions. Until this is done, different sections of the community will continue to promote mutually conflicting objectives, and this may hinder the resolution of the conflict.

The key to peace is devolution. As Neelan Tiruchelvam has observed, 'Despite the foresight of Leonard Woolf [who had argued in 1938 in favour of a large measure of devolution or a federal system on the Swiss model], 'Sri Lanka's failure to lay down the constitutional foundations of a multi-ethnic society based on equality, ethnic pluralism and the sharing of power has exacerbated the ethnic conflict'.²⁸ Any state, to be viable, needs to have legitimacy in the eyes of all major segments of its population. This would be possible only if each such segment has a voice in forming the government and in governance at all levels. It may be difficult to ensure that the Sri Lankan Tamil community will have a major say in forming the government or in governance at the centre. But substantial devolution to the provincial level can provide Sri Lankan Tamil nationalism space for fulfillment, which it has hitherto lacked.

Notes and references

1. This paper includes some of the work done by the author for the Marga Monograph Series on Ethnic Reconciliation.
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3. Michael Ignatieff, *Blood and Belonging: Journeys into the New Nationalism* (New York: The Noonday Press, 1995), p 3.
4. Michael Roberts, 'Problems of collective identity in a multi-ethnic society', In M. Roberts (ed) *Sri Lanka, Collective Identities Revisited, Vol I* (Colombo: Marga Institute, 1997), pp 439–441.
5. Hans Kohn, *Idea of Nationalism: A Study of its Origins and Background* (New York: Macmillan, 1944).
6. Benedict Anderson, *Imagined Communities* (London and New York: Verso, 1991).
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9. Paul Brass, *Language, Religion and Politics in North India* (London and New York: Cambridge University Press, 1974), p 9.
10. Ernest Gellner, *Nations and Nationalisms* (Oxford: Blackwell, 1983), p 1.
11. David M. Potter, 'The historian's use of nationalism and vice versa', *American Historical Review*, vol 3, 1982, p 930.
12. The term 'Tamil nationalism' is inaccurate because the nationalism explored in this paper is that of the ethnic group referred to as 'Sri Lankan Tamils'. In turn, the term Sri Lankan Tamils is also inaccurate since it implies that the other Tamil group resident in Sri Lanka, the 'Hill Country Tamils,' are not Sri Lankan. If, in the course of time, the ethnic identities of the Sri Lankan Tamils and the Hill Country Tamils merge, then the term Sri Lankan Tamil could be used to correctly distinguish between the Tamils of Sri Lanka and those of India and elsewhere, and not to draw distinctions among the Tamils of Sri Lanka. I have not made any attempt to coin new politically correct terms or to anticipate future developments, but have used the terms Tamil Nationalism and Sri Lankan Tamils as is widely understood in Sri Lanka.
13. Hugh Seton-Watson, *Nations and States* (London: Methuen, 1977).
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21. Ketheesh Loganathan, *Sri Lanka: Lost Opportunities* (Colombo: SEPRA, 1996) p 8.
22. *Ibid* p 104.
23. G. Parthasarathy, *Tamil Nationalism and the Sri Lankan Crisis* <<http://www.rediff.com/news/2000/jul/17gp.htm>>, July 17, 2000.
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25. Supreme Court of Canada, 2 SCR 217, 37 *International Legal Matters* 1342 (1998).
26. *Ibid*.
27. See, for example, Henry J. Steiner and Philip Alston, *Chapter 15: Self-Determination and Autonomy Regimes, Steiner and Alston International Human Rights in Context: Law, Politics, Morals* (Oxford and New York: Oxford University Press, 2000), pp 1248–1305.
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